

**PR-23-000109 In the Matter of LEO LANDUCCI AND PATRICIA LANDUCCI
REVOCABLE LIVING TRUST OF 2007 – Respondent Kathleen Landucci's
Motion for Award of Attorney's Fees and Costs – HEARING REQUIRED.**

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: The Court finds Respondent is entitled to an award of attorney's fees and costs as the prevailing party on the special motion to strike pursuant to Code of Civil Procedure section 425.16(c). Petitioner's opposition, even if considered despite its untimeliness, does not challenge any specific billing entry, hourly rate, or cost item and largely addresses issues relating to the merits of the underlying ruling, which are not before the Court on this motion. However, the Court's review of the moving, reply, and supporting papers reveals apparent inconsistencies regarding the total amount of fees sought. Different figures appear in the submitted materials, and it is unclear from the present record what precise amount Respondent requests the Court to award. Accordingly, the Court will hear argument regarding the calculation of the requested award and the reconciliation of the amounts reflected in the moving papers, supporting declaration, and reply before determining the reasonable amount of fees to be awarded. The issue of entitlement is resolved. The only issue to be addressed at hearing is the correct amount of recoverable fees and costs.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 3eb6ef9693b53cc19dc61d124b41339458901a0101496aba3e15da8ac3473950

PR-23-000109 – In the Matter of LEO LANDUCCI AND PATRICIA LANDUCCI REVOCABLE LIVING TRUST OF 2007 –
Respondent Kathleen Landucci's Motion for Award of Attorney's Fees and Costs – HEARING REQUIRED.

The Court finds Respondent is entitled to an award of attorney's fees and costs as the prevailing party on the special motion to strike pursuant to Code of Civil Procedure section 425.16(c). Petitioner's opposition, even if considered despite its untimeliness, does not challenge any specific billing entry, hourly rate, or cost item and largely addresses issues relating to the merits of the underlying ruling, which are not before the Court on this motion.

However, the Court's review of the moving, reply, and supporting papers reveals apparent inconsistencies regarding the total amount of fees sought. Different figures appear in the submitted materials, and it is unclear from the present record what precise amount Respondent requests the Court to award.

Accordingly, the Court will hear argument regarding the calculation of the requested award and the reconciliation of the amounts reflected in the moving papers, supporting declaration, and reply before determining the reasonable amount of fees to be awarded.

The issue of entitlement is resolved. The only issue to be addressed at hearing is the correct amount of recoverable fees and costs.